Brighton
PROCUREMENT & CONTRACTS
500 South 4th Avenue Brighton, CO 80601

Master Price Agreement for Services
for
[Subject]

THIS MASTER PRICE AGREEMENT FOR SERVICES ("Agreement"), is made and entered into on _____(the "Effective Date") by and between the **CITY OF BRIGHTON**, a Colorado home rule municipal corporation (the "City"), and [Company] ("Professional"), a [Company Address] [Status], authorized to do business in the State of Colorado. City and Professional are each referred to herein as a "Party" and collectively, as the "Parties."

AGREEMENT:

In consideration of the mutual obligations and covenants contained herein, and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

1) **SCOPE OF SERVICES.** Professional shall provide services for [Subject] as more specifically set forth in Exhibit A, attached hereto and incorporated by reference herein. Professional's services under this Agreement are the "Services." The Services performed by Professional shall be done in accordance with generally accepted professional practices and to the level of competency presently maintained by other practicing professionals in the same type of work in Professional's community.

2) **COMPENSATION.**
   a) In consideration of the Services to be performed pursuant to this Agreement, the City agrees to pay Professional in accordance with the Fee Schedule, Exhibit B, which shall remain fixed and firm for the base term of this Agreement. The annual Task Order aggregate amount shall not exceed [Keywords] (the "Total Compensation"). Notwithstanding the foregoing, in no event shall payments made to the Professional pursuant to this Agreement exceed the Total Compensation. The Professional shall bill the City periodically, but no more frequently than once per month. All invoices must reference the Agreement number, with an itemized description of the Services completed. The itemized invoices from the Professional shall include: (1) a list of the Professional's employees who worked on the Project during the applicable billing period, the amount of time each employee worked, and the associated billing rate of each employee; and (2) an itemized list of reimbursable expenses and, if applicable, copies of invoices for outside services or materials.

b) Payment shall be made according to Net 30 terms payable within thirty days of receipt of invoice issued after Services are rendered and shall not exceed the Total Compensation. All payments shall be based on the Professional's progress in completing the Services, as verified by the City, and subject to City approval of Professional's actual reimbursable expenses. The City may withhold payment of any disputed amounts, and no interest shall accrue on any amount withheld pending the resolution of the dispute.

c) Upon conclusion of the Project and before final payment, the Professional shall provide to the City the final written work product(s) developed for the Project, installation guides, administration guides, end user guides, workflow manuals, release notes, regression test scripts and data dictionary in electronic format to the assigned project manager. Upon final payment, all Project notes, reports, non-propriety computer programs, computer input and output, analyses, tests, maps, surveys, or any other final Project work products developed specifically for the Project or the Services are and shall remain the sole and exclusive property of the City. The Professional shall not provide copies of any material prepared as part of a Project or the Services to any other person or entity without the prior written consent of the City, which may be withheld in the City's sole discretion.

d) Consistent with Article X, § 20 of the Colorado Constitution, any financial obligation of the City not performed during the current fiscal year is subject to annual appropriation, and shall extend only to the monies currently appropriated, and shall not constitute a mandatory charge requirement, debt, or liability beyond the current fiscal year.

3) **TERM.** The term of this Agreement shall commence on the Effective Date and remain in effect for a period of one year. The City shall have the option to renew the Agreement for subsequent one-year terms, not to exceed a total of four (4) additional one-year terms. This option is the prerogative of the City and not a right of the Professional and shall be exercised only when such continuation has been deemed necessary by the City, in accordance with the Fee Schedule set forth in Exhibit B, and subject to the appropriation of funds therefor. Consistent with Article X, § 20 of the Colorado Constitution, any financial obligation of the City not performed during the current fiscal year is subject to annual appropriation, shall extend only to monies currently appropriated, and shall not constitute a mandatory charge, requirement, debt, or liability beyond the current fiscal year.

Task orders may only be assigned prior to the expiration or earlier termination of this Agreement but may have a delivery date or period of performance that extends no longer than 120 calendar days following that expiration or earlier termination date. Regardless of whether this Agreement has expired or has otherwise been terminated, the Professional shall comply with all requirements of this Agreement, and individual Task Orders that extend past the expiration or termination, necessary to

complete outstanding Task Orders shall survive the expiration or termination of this Agreement until all Task Orders are complete.

4) **CITY REPRESENTATIVE.** The City designates Click or tap here to enter text. as its representative and Project Manager, who shall make, within the scope of their authority, all necessary and proper decisions with reference to each Project. All requests for contract interpretations, change orders, and other clarification or instruction shall be directed to the City Representative. The Project Manager can be contacted via phone: Click or tap here to enter text., or email: **[Company E-mail]**.

5) **INDEMNIFICATION.** Contractor agrees to indemnify and hold harmless the City, and its officers and its employees, from and against any and all claims, demands, disputes, actions, suits, proceedings, judgments, damages, injuries, losses, liabilities, expenses, costs, fees, interest, fines, and penalties of whatever nature, character or description whether known or unknown, anticipated or unanticipated, fixed or contingent, now existing or which may hereafter accrue that arise out of or are connected with the Services and Work hereunder, to the extent such injury, loss, or damage or any portion thereof, is caused by, or claimed to be caused by, the negligent, reckless, or intentional act, omission, or error of Contractor or any subcontractor of Contractor, or any officer, employee, or agent of Contractor or any subcontractor, or any other person for whom Contractor is responsible (collectively, "Claims"). Contractor shall investigate, handle, respond to, and provide defense for and defend against any such Claims, and bear all costs and expenses related thereto, including court costs, attorneys' fees, and expert costs. Contractor's indemnification obligation shall not be construed to extend to any injury, loss or damage caused by the act, omission, or other fault of the City. Contractor's duty to indemnify the City shall arise at the time written notice of a Claim is first provided to the City regardless of whether claimant has filed suit on the claim. Contractor's duty to indemnify the City shall arise even if the City is the only party sued by claimant. Contractor shall keep the City informed and consult with the City in connection with the progress of any such Claim. Contractor shall not engage in any action or omit to take any action in connection with any Claim that would likely result in harm or have an adverse consequence to the City. The City shall have the right to participate in any settlement, compromise, and/or disposition of any Claim. The Contractor may retain counsel to defend against any Claims provided the Contractor may retain such counsel only upon prior written approval by the City, such approval not to be unreasonably withheld. If, in the City's reasonable judgment, (i) a potential or actual conflict exists or arises between the interest of the City and the Contractor in any such Claim or (ii) the Contractor fails to diligently and fully perform its obligations under this Section 5, the City shall have the right to (i) retain its own counsel, whose reasonable fees and costs will be paid by the Contractor, to defend the Indemnified Parties and (ii) control the disposition of any Claim at the Contractor's sole cost and expense. Contractor's indemnification obligation shall also include, but not be limited to, any claim made against City by: (1) Contractor's employee, subconsultant or subcontractor who has been injured on property owned by the City; or (2) a third party claiming patent, copyright or trademark infringement.

6) **INSURANCE.**

a) The Professional agrees to procure and maintain in full force and effect during the term of the Agreement, at its own cost, the following coverages:

- Workers' Compensation insurance as required by the Labor Code of the State of Colorado and Employers' Liability Insurance;

- Commercial General or Business Liability Insurance with minimum combined single limits of one million ($1,000,000) each occurrence and one million ($1,000,000) general aggregate;

- Automobile Liability Insurance with minimum combined single limits for bodily injury and property damage of not less than one million ($1,000,000) for any one occurrence, with respect to each of the Professional's owned, hired or non-owned vehicles assigned to or used in performance of the Services. In the event that the Firms insurance does not cover non-owned automobiles, then the Consultant guarantees to the City that the requirements of this paragraph shall be met by each employee, subconsultant or other agent of the Professional who utilizes an automobile in providing services to the City of Brighton under this Agreement; and

- Professional Liability Insurance with limits of liability of at least one million ($1,000,000) per claim and in the aggregate.

Subject to approval by the City, in the City's sole and absolute discretion, evidence of qualified self-insured status may be substituted for one or more of the foregoing insurance coverages. The City shall be named as Additional Insured on the Commercial General Liability and Auto Liability policies, and for that purpose the Professional shall obtain and maintain, or cause to be obtained and maintained, any and all necessary policy endorsements, additional coverage documents, or other instruments or Certificates, such as will provide such insurance coverage to the City at all times during the Professional's performance of the Project. All Certificates of Insurance shall be submitted on an Acord 25-S form or most current industry standard form.

b) Professional shall cause any subconsultant or subcontractor of the Professional to procure and maintain the minimum insurance coverages listed herein. Such coverages shall be procured and maintained with forms and insurers acceptable to the City of Brighton. All coverages shall be continuously maintained to cover all liability, claims, demands, and other obligations assumed by the Professional in connection with providing any Services under this Agreement. In the case of any claims made, the necessary retroactive dates and extended reporting periods shall be procured to maintain such continuous coverage.

c) A Certificate of Insurance shall be completed by the Professional's insurance agent(s) as evidence that policies providing the required coverages, conditions, and minimum limits are in full force and effect, and shall be subject to review and approval by the City prior to commencement of any Services under this

Agreement. The Certificate of Insurance shall identify this Agreement and shall provide that the coverages afforded under the policies shall not be cancelled, non-renewed, or reduced in coverage or limits until at least thirty (30) days prior written notice has been given to the City. A current Certificate of Insurance shall be kept on file with the Procurement & Contracts Division at all times. Updated certificates shall only be accepted electronically and delivered to: procurement@brightonco.gov.

d) Professional's failure to procure or maintain insurance policies providing the required coverages, conditions, and minimum limits shall constitute a material breach of this Agreement upon which the City may immediately terminate this Agreement. Alternatively, in its sole discretion, the City may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all monies so paid by the City shall be repaid by the Professional to the City upon demand, or the City may offset the cost of the premiums against any monies due to Professional under this Agreement, or any other agreement between the City and the Professional.

e) The City reserves the right to request and receive a copy of any endorsement required to comply with the above requirements. Professional agrees to execute any and all documents necessary to allow the City access to endorsements pertaining to this Project. All Certificates of Insurance shall be submitted on an Acord 25-S form or most current industry form.

7) **SUBSURFACE ENGINEERING**. If the Services include subsurface engineering and/or excavation, the Professional shall obtain information as to the description, nature, and location of underground facilities in the area of such proposed excavation and include such information in the plan or specifications to inform an excavation contractor of the existence of such facilities and of the need to obtain information thereon pursuant to C.R.S. § 9-1.5-103(3). Further, the Professional shall: (1) notify the notification association with a subsurface utility engineering notification; (2) meet or exceed the ASCE 38 standard to defining the underground facility location in the stamped plans for all underground facilities within the proposed excavation area, or document the reasons why any underground facilities depicted in the stamped plans do not meet or exceed ASCE 38 utility quality level B or its successor utility quality level; (3) attempt to achieve ASCE 38 utility quality level B or its successor utility quality level on all utilities within the proposed excavation area unless a reasonable rationale by a licensed profession engineer is given for not doing so; and (4) document the reasons why any underground facilities depicted in the stamped plans do not meet or exceed ASCE 38 utility quality level A or its successor utility quality level for underground facilities at the point of potential conflict with the installation of a gravity-fed system.

8) **PERFORMANCE MEASURES**. Professional shall comply with the requirements of Exhibit A regarding progress meetings and progress reports, if any. If Professional fails to provide any required monthly report or to conduct the required progress meetings, the City may, in its sole and absolute discretion, suspend payment of invoices pursuant to this Agreement until such time as Professional is in compliance with the requirements of this Agreement. The City, through its authorized

representatives, has the right at all reasonable times to inspect or otherwise evaluate the Services performed under this Agreement.

9) **NOTICE**. Any notice provided under this Agreement shall be deemed properly given if: (i) sent by certified mail, return receipt requested, (ii) personally delivered, (iii) sent by a nationally recognized overnight courier service, or (iv) sent by email to the following addresses or to such other address as either Party may designate, provided the sender does not receive a notification of error in transmission:

If to Professional:	If to City:
	500 S 4th Ave
	Brighton, CO 80601
Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	Click or tap here to enter text.
Click or tap here to enter text.	procurement@brightonco.gov

10) **CONTRACT DOCUMENTS**. As used herein, the term "Contract Documents," to the extent such documents exist, means: advertisement for bids, invitation to bid, instruction to bidders, the Request for Proposal, the Response, special instructions, special conditions, general conditions, attached hereto as Exhibit C (the "General Conditions"), any City-issued addendum, this Agreement, and all exhibits hereto. All Contract Documents are incorporated into this Agreement as if fully set forth herein. In the event of conflict between the terms of the Contract Documents, the order of precedence shall be: this Agreement, the special conditions, the General Conditions, special instructions, the Request for Proposal, instructions to bidders, Response, invitation to bid, and advertisement for bids. Professional affirms that it has read and is familiar with the Contract Documents and agrees to be bound by the terms and conditions of the Contract Documents.

11) **SUSPENSION**. Without terminating this Agreement, the City may, in its sole and absolute discretion, suspend the Services of the Professional. In the event of suspension, the City shall provide 7 days' prior written notice to the Professional, which shall set forth the reasons for the suspension (the "Suspension Notice"). Upon receipt of the Suspension Notice, the Professional shall cease the Services in as efficient a manner as possible in order to keep its total charges to the City for the Services to a minimum. In the event that the period of suspension exceeds ninety (90) days, either Party may terminate this Agreement without fault. In the event of suspension, the Professional shall be paid for Services satisfactorily rendered prior to the suspension date.

12) **TERMINATION**. The City may terminate this Agreement for convenience at any time by providing not less than 15 days' written notice to the Professional prior to the termination date. In the event of termination for convenience by the City, the Professional shall be paid for Services satisfactorily rendered prior to the date of termination. Such payment shall be the sole right and remedy for such termination. The City may also cancel any unfulfilled obligations immediately upon written notice to the Professional upon the institution by or against Professional of insolvency,

receivership, or bankruptcy proceedings, or upon Professional's dissolution or ceasing to do business.

13) **INDEPENDENT CONTRACTOR**. The Services to be performed by Professional are those of an independent consultant and not of an employee of the City. The City shall not be responsible for withholding any portion of Professional's compensation hereunder for the payment of FICA, workers' compensation, other taxes, or benefits or for any other purpose. The City and Professional acknowledge and agree that the City may, at its own discretion, use other City approved businesses to perform similar services, and that this Agreement in no way limits the City from hiring other businesses or constitutes a contract for exclusive owner's representative services from Professional.

14) **OPEN RECORDS REQUESTS**. The City is obligated to comply with the Colorado Open Records Act, C.R.S. § 24-72-200.1 *et seq*. ("CORA"), which may require the City to disclose the Agreement, all or a portion of communications relating to the Agreement, any transaction under the Agreement, and other related matters. Professional has been advised to familiarize itself with CORA. Any confidentiality provisions in any Contract Documents are subject to the provisions of CORA.

15) **NO WAIVER OF GOVERNMENTAL IMMUNITY**. Nothing contained in the Contract Documents shall be construed as a waiver of any of the immunities, limitations, privileges, rights, procedures, or requirements contained in the Colorado Governmental Immunity Act, C.R.S. § 24-10-101 *et seq*.

16) **ACCEPTANCE NOT WAIVER**. The City's approval of Services, reports, or materials furnished hereunder shall not in any way relieve the Professional of responsibility for the quality or technical accuracy of the Services. The City's approval or acceptance of, or payment for, any part of the Services, in whole or in part, shall not operate as a waiver of any other rights or benefits provided to the City under this Agreement.

17) **REMEDIES**. In the event a Party has been declared in default, such defaulting Party shall be allowed a period of ten (10) days within which to cure said default. In the event the default remains uncured, the Party declaring default may elect to (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy available at law or in equity.

18) **BINDING EFFECT AND AMENDMENT**. This Agreement constitutes the entire agreement between the Parties and shall be binding upon the Parties, their officers, employees, agents, and assigns and shall inure to the benefit of the respective successors and assigns. This Agreement may be amended only by the mutual consent of both Parties in writing.

19) **LAW AND SEVERABILITY**. The laws of the State of Colorado shall govern the construction, interpretation, execution and enforcement of this Agreement. The Parties hereby consent that the exclusive venue for any legal actions related to this Agreement shall be in the District Court of Adams County, Colorado, irrespective of any conflicts of law. In the event any provision of this Agreement shall be held invalid

or unenforceable by any court of competent jurisdiction, such holding shall not invalidate or render unenforceable any other provision of this Agreement.

20) **THIRD PARTIES.** The services to be performed by the Professional are intended solely for the benefit of the City. No person or entity not a signatory to this Agreement shall be entitled to rely on the Professional's performance of its services hereunder, and no right to assert a claim against the Professional by assignment of indemnity rights or otherwise shall accrue to a third party as a result of this Agreement or the performance of the Professional's services hereunder**.**

21) **ACCESSIBILITY.** Professional shall comply with and the Work Product (deliverables) provided under the Agreement shall be in compliance with all applicable provisions of §§24-85-101, et seq., C.R.S., and the Accessibility Standards for Individuals with a Disability, as established by OIT pursuant to Section §24-85-103 (2.5), C.R.S. Professional shall also comply with all State of Colorado technology standards related to technology accessibility and with Level AA of the most current version of the Web Content Accessibility Guidelines (WCAG), incorporated in the State of Colorado technology standards.

The City may require Professional's compliance to the State's Accessibility Standards to be determined by a third party selected by the City to attest to [Category]'s Work Product and software is in compliance with §§24-85-101, et seq., C.R.S., and the Accessibility Standards for Individuals with a Disability as established by OIT pursuant to Section §24-85-103 (2.5), C.R.S.

a) **Accessibility Indemnification**: Professional shall indemnify, save, and hold harmless the Indemnified Parties, against any and all costs, expenses, claims, damages, liabilities, court awards and other amounts, including attorneys' fees and related costs, incurred by any of the Indemnified Parties in relation to Professional's failure to comply with §§24-85-101, et seq., C.R.S., or the Accessibility Standards for Individuals with a Disability as established by OIT pursuant to Section §24-85-103 (2.5), C.R.S.

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IN WITNESS WHEREOF: The Parties have executed this Agreement as of the Effective Date.

THE CITY OF BRIGHTON, COLORADO
A home rule municipal corporation

BY: _____

ATTEST:

_____

APPROVED AS TO FORM:

_____

[Company]
A [Company Address] [Status]

BY: _____

Exhibit A
Scope of Services

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Exhibit B
Fee Schedule

All invoices or pay applications shall be sent no more frequently than once per month, payable Net 30, to the following email address: [Company E-mail]. The City shall pay monthly invoices within thirty (30) days of receipt of an approved invoice.

All Task Orders shall be individually quoted in accordance with the fee schedule below. Task Orders issued pursuant to the Agreement shall not exceed [Keywords], in the aggregate, annually.

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